

FARIDI v TDS TRUSTEE SERVICES

25CV48053

PLAINTIFF'S MOTION FOR JUDICIAL CLARIFICATION OF STANDING

Plaintiff Tariq Jamil Faridi ("Plaintiff") filed his Complaint arising out of a real property dispute with Defendant Steve Carlson ("Carlson").

Now before the Court is Plaintiff's motion seeking clarification on the issue of Plaintiff's standing.

The Motion does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion must include the following language:

3 3 7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.

Accordingly, the Motion for Judicial Clarification of Standing is **DENIED**, without prejudice to refile.

Additionally, The Court notes that Plaintiff's **Motion to Correct Clerical Error in Court Record** scheduled for hearing on April 24, 2026, also lacks the mandatory language so the hearing on the Motion is advanced and said Motion is **also DENIED**, without prejudice to refile with the necessary Notice language.

However, the Court notes that plaintiff has previously been advised that any Motion failing to contain the mandatory Local Rules Notice will be denied. Based on plaintiff's continued failure to adhere to the local rules, **any future filed motions lacking the mandated language will be denied WITH Prejudice.**

The clerk shall provide notice of this ruling to the parties forthwith. No further formal Order is required.

**POKER FLAT PROPERTY OWNERS' ASSOCIATION
v RODRIGUEZ, et al**

26CV48556

PLAINTIFF'S REQUEST FOR PRELIMINARY INJUNCTION

This is a dispute involving allegations of violations of Covenants, Conditions and Restrictions of the Lake Tulloch Shores Subdivision ("CC&R") brought by Poker Flat Property Owners' Association, Inc. ("Plaintiff") against Rudy Rodriguez ("Rudy"), Michelle Rodriguez ("Michelle") and William Artau ("Artau") (collectively "Defendants.")

Now before the Court is an order to show cause as to why a preliminary injunction should not be issued.

The Court grants Plaintiff's Request for Judicial Notice.

I. Background Facts and Relevant Procedural History

The Association is a homeowner's association with 595 member lots including 122 that are lakefront. (Complaint ¶ 11.) The Association has approximately 150 homes with full-time residents with the remainder typically vacation homes for owner members. (*Id.* ¶ 12.) On or about May 1, 2013, Rudy purchased real property within the Association known as 609 Dolores Way ("609 Property") (*Id.* ¶ 2.) Later, on or about July 12, 2021, Rudy added Michelle to title as husband and wife, as Community Property with Right of Survivorship. (*Id.* ¶ 3.) On or about July 1, 2016, Artau started occupying the 609 Property. (*Id.* ¶ 4.)

All owners and occupants of the 609 Property are required to comply with the Association CC&Rs. (Complaint ¶ 15, Ex. 1.) Article Five of the CC&Rs provides that the properties within the Association may only be used for "single-family residential dwellings" and for no other purpose. (*Id.* ¶ 16.) However, Defendants have converted the first floor of the 609 Property into three separate studio apartments, each being occupied by separate individuals, and also have converted the second floor of the 609 Property into another three separate studio apartments that are being occupied by separate occupants. (*Id.* ¶ 18.) By renting out portions of the 609 Property as apartments, Defendants are not in accordance with the CC&Rs. Additionally, Defendants are allegedly in violation of Article 11 of the CC&Rs because of failing to comply with parking, noise, and pet restrictions. (*Id.* ¶ 21(a)-(g).) Finally, Defendants are alleged to be in violation of Article 15 because of excessive trash. (*Ibid.*)

On February 10, 2026, Plaintiff filed this lawsuit, alleging causes of action for a preliminary injunction and declaratory relief. On February 27, 2026, the Court granted